

Padala Sri Satya vs Sudabathula Anjani Pavan Krishna on 10 September, 2025

APHC010172072025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

WEDNESDAY, THE TENTH DAY OF SEPTEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 123/2025

Between:

Padala Sri Satya

...PETITIONER

AND

Sudabathula Anjani Pavan Krishna

...RESPONDENT

Counsel for the Petitioner:

1. K.V.S.S.PRABHAKARA RAO

Counsel for the Respondent:

1. MEDAPATI SANTOSH REDDY

The Court made the following:

ORDER:

The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw H.M.O.P.No.10 of 2025, on the file of the Senior Civil Judge, Bhimavaram, West Godavari District and transfer the same to the Senior Civil Judge, at Kakinada, East Godavari District.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and their marriage has been performed at Kakinada District on 18.04.2024. In view of the matrimonial disputes between both the parties, the petitioner/wife is staying at her parents' house at Kakinada, East Godavari District and depending upon the mercy of her parents. The petitioner pleaded that she had filed a Domestic Violence Case vide D.V.C.No.31

of 2023, on the file of the VI Additional Junior Civil Judge, Rajahmundry and a Maintenance Case vide M.C.No.18 of 2025, on the file of the VII Additional Judicial First Class Magistrate, Kakinada and the respondent/husband is attending the Court proceedings before the competent Courts at Kakinada. The learned counsel for the petitioner would contend that to cause inconvenience to the petitioner, the respondent/husband filed H.M.O.P.No.10 of 2025, on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, under Section 12(1)(c) of the Hindu Marriage Act, 1955, seeking for nullity of marriage. II. Learned counsel for the petitioner further contended that the petitioner being a woman, depending upon the mercy of her parents, it is very difficult for her to travel at a distance of approximately morethan 120 Kms for attending the Court proceedings before the learned Senior Civil Judge, Bhimavaram, West Godavari District, without any male support and that she was constrained to file the present petition against the respondent/husband seeking to withdraw H.M.O.P.No.10 of 2025, on the file of the Senior Civil Judge, Bhimavaram, West Godavari District and transfer the same to the Senior Civil Judge, at Kakinada, East Godavari District.

3. Learned counsel for the respondent would contend that there are no grounds to consider the request of the petitioner seeking to transfer the aforesaid case from the Senior Civil Judge, Bhimavaram, West Godavari District to the Senior Civil Judge, at Kakinada, East Godavari District and requested to dismiss the present transfer civil miscellaneous petition. He further contended that the respondent/husband is working as a Software Employee and is currently residing at United States of America (USA), if this Court is inclined to transfer the case from Bhimavaram to Kakinada, the personal attendance of the respondent/husband may be dispensed with before the transferee Court.

4. Heard Sri K.V.S.S.Prabhakara Rao, learned counsel for the petitioner and Sri Medapati Santhosh Reddy, learned counsel for the respondent. Perused the material available on record.

5. The material on record prima facie goes to show that in view of the matrimonial disputes between both the parties, the petitioner/wife is staying at her parents' house at Kakinada, East Godavari District and depending upon the mercy of her parents and the petitioner had filed a Domestic Violence Case vide D.V.C.No.31 of 2023, on the file of the VI Additional Junior Civil Judge, Rajahmundry and a Maintenance Case vide M.C.No.18 of 2025, on the file of the VII Additional Judicial First Class Magistrate, Kakinada.

6. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

7. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha² held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or

other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

(2000) 10 SCC 304 2022 LiveLaw (SC) 627

8. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be considered than that of the inconvenience of the husband. Therefore, this Court is of the considered view that there are grounds to consider the request of the petitioner/wife to withdraw H.M.O.P.No.10 of 2025, on the file of the Senior Civil Judge, Bhimavaram, West Godavari District and transfer the same to the Senior Civil Judge, at Kakinada, East Godavari District. Further, on considering the submissions made by the learned counsel for the respondent, as the respondent/husband is working as a Software Employee and is staying at United States of America (USA), the personal attendance of the respondent/husband has been dispensed with before the transferee Court, except on the days when his presence is required before the learned Senior Civil Judge, at Kakinada, East Godavari District.

9. In the result, the present petition is allowed and H.M.O.P.No.10 of 2025, on the file of the Senior Civil Judge, Bhimavaram, West Godavari District, is hereby withdrawn and transferred to the Principal Senior Civil Judge, at Kakinada, East Godavari District. The Senior Civil Judge, Bhimavaram, West Godavari District, shall transmit the case record in H.M.O.P.No.10 of 2025 to the Principal Senior Civil Judge, at Kakinada, East Godavari District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. Later the learned Principal Senior Civil Judge, at Kakinada, East Godavari District, is directed not to insist for the personal appearance of the respondent/husband i.e., the petitioner in H.M.O.P.No.10 of 2025, as long as his counsel is attending the Court proceedings and representing the case except on the day when re- conciliation proceedings are being taken up or on the day when his cross- examination is required to be recorded or on any other day when his personal appearance is required as directed by the learned Principal Senior Civil Judge, at Kakinada, East Godavari District. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

----- JUSTICE V.GOPALA KRISHNA RAO Date:
10.09.2025 SRT